

Presidential Documents

Executive Order 14421 of August 26, 2026

Declaring a National Emergency To Secure the United States Bulk-Power System

By the authority vested in me as President by the Constitution and the laws of the United States of America, including the International Emergency Economic Powers Act (50 U.S.C. 1701 *et seq.*) (IEEPA), the National Emergencies Act (50 U.S.C. 1601 *et seq.*) (NEA), and section 301 of title 3, United States Code, I hereby determine and order:

Section 1. *National Emergency.* As President of the United States, my highest duty is protecting the national security, foreign policy, and economy of this country. Certain foreign actors are increasingly creating and exploiting vulnerabilities in the United States bulk-power system, which provides the electricity that supports our national defense, vital emergency services, critical infrastructure, and economy. During my first term, I found that the bulk-power system could be a target of those seeking to commit malicious acts against the United States, including malicious cyber activities, because of the significant risks that a successful attack would have on our economy, human health and safety, and national defense. Since my first term, the threat to the United States regarding foreign supply of bulk-power system electric equipment has become even more acute: The rapid growth of advanced manufacturing, data centers, artificial intelligence, and defense production has increased the Nation's dependence on abundant, reliable electricity and magnified the consequences of a successful attack or supply disruption on the bulk-power system.

The minimal restrictions on acquisition or operation in the United States of foreign-produced bulk-power system electric equipment augment the ability of some foreign entities to create and exploit vulnerabilities in such equipment; for instance, such equipment might have digital backdoors built into their systems that allow a foreign country to access that equipment remotely. Further, continued United States reliance on foreign sources of bulk-power system electric equipment with these potential national security vulnerabilities also creates a supply chain vulnerability that could eliminate the supply of these products in the United States as a result of disruptions in international trade or other causes.

NOW, THEREFORE, I, DONALD J. TRUMP, President of the United States of America, find that the situation with respect to the foreign supply of bulk-power system electric equipment constitutes an unusual and extraordinary threat, which has its source in whole or substantial part outside the United States, to the national security, foreign policy, and economy of the United States and hereby declare a national emergency with respect to that threat. This threat exists both in the case of individual transactions and when transactions are considered as a class. To deal with this threat, additional steps are required to protect the security, integrity, and reliability of bulk-power system electric equipment used in the United States.

Sec. 2. *Prohibitions and Implementation.* (a) The following actions are prohibited: any acquisition, importation, transfer, or installation of any foreign-produced bulk-power system electric equipment (transaction) by any person, or with respect to any property, subject to the jurisdiction of the United States, where the transaction involves any property in which any foreign country or a national thereof has any interest (including through an interest in a contract for the provision of the equipment), where the transaction

was initiated after the date of this order, and where the Secretary of Energy (Secretary), in coordination with the Director of the Office of Management and Budget and in consultation with the Secretary of War, the Secretary of Commerce, the Secretary of Homeland Security, the Director of National Intelligence, and, as appropriate, the heads of other executive departments and agencies (agencies), has determined that:

(i) the transaction involves bulk-power system electric equipment—or any critical component, software, firmware, digital service, maintenance service, or remote-access capability associated with such equipment—designed, developed, manufactured, or supplied by persons owned by, controlled by, or subject to the jurisdiction or direction of a Covered Foreign Entity; and

(ii) the transaction:

(A) poses an undue risk of sabotage, subversion, unauthorized access, malicious remote action, or supply disruption affecting the design, integrity, manufacturing, production, distribution, installation, operation, or maintenance of the bulk-power system in the United States;

(B) poses an undue risk of catastrophic effects on the security or resilience of United States critical infrastructure or the economy of the United States; or

(C) otherwise poses an unacceptable risk to the national security of the United States or the security and safety of United States persons.

(b) Upon making the determinations described in subsection (a) of this section, the Secretary, in consultation with the Secretary of War, the Secretary of Commerce, the Secretary of Homeland Security, and the Director of National Intelligence, may impose conditions on the continued use, operation, maintenance, servicing, or updating of foreign manufactured or operated bulk-power system electric equipment acquired or installed before the date of this order, including requirements to identify, isolate, monitor, secure, disconnect, replace, or remove such equipment. Before directing isolation, disconnection, replacement, or removal, the Secretary shall consider effects on reliability and safety, the availability of secure replacements, and continuity of essential service, and may establish phased compliance.

(c) The Secretary, in consultation with any senior executive branch official he deems appropriate, may design or negotiate measures to mitigate concerns identified in this order. Such measures may serve as a precondition to the approval by the Secretary of a transaction or of a class of transactions that would otherwise be prohibited pursuant to this order.

(d) The prohibitions in this section apply except to the extent provided by statutes, or in regulations, orders, directives, or licenses that may be issued pursuant to this order, and notwithstanding any contract entered into or any license or permit granted prior to the date of this order.

(e) The Secretary, in consultation with any senior executive branch official he deems appropriate, may establish criteria and procedures for recognizing particular equipment and particular vendors in the bulk-power system electric equipment market as pre-qualified for future transactions and therefore exempt from subsection (a) of this section, and may apply these criteria to establish and publish a list of pre-qualified equipment and vendors. Nothing in this provision limits the Secretary's authority under this section to prohibit or otherwise regulate any transaction involving qualified equipment or suppliers.

(f) Any transaction that evades or avoids, has the purpose of evading or avoiding, causes a violation of, or attempts to violate any prohibition or requirement under this order is prohibited. Any conspiracy formed to violate any prohibition or requirement under this order is prohibited.

Sec. 3. Authorities. (a) The Secretary is hereby authorized to take such actions, including directing the timing and manner of the cessation of pending and future transactions prohibited pursuant to section 1 of this order, ordering

the replacement of equipment posing an unacceptable risk to national security, adopting appropriate rules and regulations, and employing all other powers granted to the President by IEEPA, as may be necessary to implement this order. The head of each agency is authorized to and shall take all appropriate measures within the agency's authority to implement this order. The head of each agency may, consistent with applicable law, including section 301 of title 3, United States Code, redelegate the authority to take such appropriate measures within the agency.

(b) Rules and regulations issued pursuant to this order may, among other things, determine that particular countries or persons are a Covered Foreign Entity exclusively for the purposes of this order; identify persons owned by, controlled by, or subject to the jurisdiction or direction of a Covered Foreign Entity exclusively for the purposes of this order; identify particular equipment or countries with respect to which transactions involving bulk-power system electric equipment warrant particular scrutiny under the provisions of this order; and establish procedures to license transactions otherwise prohibited pursuant to this order. Within 120 days of the date of this order, the Secretary, in consultation with the Secretary of War, the Secretary of Homeland Security, the Director of National Intelligence, and any other senior executive branch official the Secretary deems appropriate, shall publish rules or regulations implementing the authorities delegated to the Secretary by this order as needed.

(c) As soon as practicable, the Secretary, in consultation with the Secretary of War, the Secretary of the Interior, the Secretary of Commerce, the Secretary of Homeland Security, the Director of National Intelligence, and any other senior executive branch official the Secretary deems appropriate, shall:

(i) identify bulk-power system electric equipment designed, developed, manufactured, or supplied by persons owned by, controlled by, or subject to the jurisdiction or direction of one or more Covered Foreign Entities that poses an undue risk of sabotage to or subversion of the design, integrity, manufacturing, production, distribution, installation, operation, or maintenance of the bulk-power system in the United States; poses an undue risk of catastrophic effects on the security or resilience of United States critical infrastructure or the economy of the United States; or otherwise poses an unacceptable risk to the national security of the United States or the security and safety of United States persons; and

(ii) develop and submit to the President through the Assistant to the President for National Security Affairs recommendations on ways to identify, inventory, isolate, monitor, or replace such items as soon as practicable, taking into consideration overall risk to the bulk-power system.

Sec. 4. *Promoting Federal Energy Infrastructure Procurement Policies to Support National Security and Resilience.* (a) Within 180 days of the date of this order, the Secretary, in consultation with the Federal Acquisition Regulatory Council (FAR Council) and any other senior executive branch official he deems appropriate, shall develop and submit a set of recommended revisions to the Federal Acquisition Regulation (FAR) to ensure that national security risks are adequately considered in any Federal procurement concerning energy infrastructure and to prioritize the acquisition of United States-manufactured energy infrastructure.

(b) Within 90 days of receiving the Secretary's recommendations pursuant to subsection (a) of this section, the FAR Council shall consider proposing for notice and public comment amendments to the applicable provisions in the FAR to implement the recommendations provided by the Secretary.

Sec. 5. *Definitions.* For the purposes of this order:

(a) The term "bulk-power system" means a system that: (i) facilities and control systems necessary for operating an interconnected electric energy transmission network (or any portion thereof); and (ii) electric energy from generation facilities needed to maintain electric system reliability. For the purpose of this order, this definition includes transmission lines rated at 69,000 volts (69 kV) or more, but does not include facilities used in the local distribution of electric energy.

(b) The term “bulk-power system electric equipment” means items used in bulk-power system substations, control rooms, or power generating stations, including reactors; capacitors; substation transformers; utility-scale and other grid-connected inverters; battery energy storage systems; and uninterruptible power supply systems supporting critical infrastructure, current coupling capacitors, large generators, small generators, backup generators, substation voltage regulators, shunt capacitor equipment, automatic circuit reclosers, instrument transformers, coupling capacity voltage transformers, protective relaying, metering equipment, high voltage circuit breakers, generation turbines, industrial control systems (including remote terminal units, programmable logic controllers, and intelligent electronic devices), distributed control systems, and safety instrumented systems. In determining whether equipment is within the scope of this order, agencies also may consider associated software and firmware, remote access capabilities, lifecycle maintenance and update mechanisms, and other supply chain dependencies that could present an unacceptable risk to the bulk-power system. Items not included in the preceding list or that have broader application beyond the bulk-power system unrelated to the national security concerns identified in this order are outside the scope of this order.

(c) The term “foreign-produced” means an article that is not manufactured, produced, or assembled in the United States.

(d) The term “entity” means a partnership, association, trust, joint venture, corporation, group, subgroup, or other organization.

(e) The term “Covered Foreign Entity” means a country or any person owned by, controlled by, or subject to the jurisdiction or direction of a government of a foreign country that is subject to a United States arms embargo or sanctions regime, under the International Traffic in Arms Regulations (22 C.F.R. 126.1), or that the Secretary, in consultation with the Secretary of War, the Director of National Intelligence, and the Assistant to the President for National Security Affairs, has determined is engaged in conduct that is detrimental to the national security or foreign policy of the United States.

(f) The term “person” means an individual or entity.

(g) The term “procurement” means the acquiring by contract with appropriated funds of supplies or services, including installation services, by and for the use of the Federal Government, through purchase, whether the supplies or services are already in existence or must be created, developed, demonstrated, and evaluated.

(h) The term “United States person” means any United States citizen, permanent resident alien, entity organized under the laws of the United States or any jurisdiction within the United States (including foreign branches), or any person in the United States.

Sec. 6. *Reports to Congress.* (a) The Secretary is hereby authorized and directed to submit recurring and final reports to the Congress regarding the national emergency declared in this order, consistent with section 401 of the NEA (50 U.S.C. 1641) and section 204(c) of IEEPA (50 U.S.C. 1703(c)).

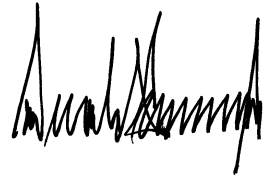
Sec. 7. *General Provisions.* (a) Nothing in this order shall be construed to impair or otherwise affect:

(i) the authority granted by law to an executive department or agency, or the head thereof; or

(ii) the functions of the Director of the Office of Management and Budget relating to budgetary, administrative, or legislative proposals.

(b) This order shall be implemented consistent with applicable law and subject to the availability of appropriations.

(c) This order is not intended to, and does not, create any right or benefit, substantive or procedural, enforceable at law or in equity by any party against the United States, its departments, agencies, or entities, its officers, employees, or agents, or any other person.

A handwritten signature in black ink, appearing to be a stylized representation of a name, possibly "Donald Trump", written in a cursive, somewhat jagged style.

THE WHITE HOUSE,
August 26, 2026.